



CHAPTER cxxxii.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board for Ireland relating to
King's County and the County of Kildare and the
Rural Districts of Ballyshannon Loughrea and Tralee.
[18th August 1911.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set forth in Schedules A. and B. hereto under the Local Government (Ireland) Act 1898 and the Provisional Orders set forth in Schedules C. D. and E. hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Orders should be confirmed by Parliament:

And whereas the Ballyshannon Rural District Council has borrowed under the Public Health (Ireland) Act 1878 and the Labourers (Ireland) Acts 1883 to 1906 various sums of money leaving the present unexercised borrowing powers of the said Ballyshannon Rural District Council only seven hundred and twenty pounds or thereabouts in respect of the area of chargeability for the Bundoran Sewerage Scheme consisting of portions of the townlands of Drumacrin Magheracar and Finner as determined by an order made by the Local Government Board for Ireland and dated the eleventh day of February one thousand nine hundred and two being an area of chargeability within the Ballyshannon Rural District:

And whereas for the purpose of the said sewerage scheme a further sum of two thousand pounds or thereabouts over and above the present unexercised borrowing powers of the said Ballyshannon Rural District Council in respect of the

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A.D. 1911. said area is required to defray the expenditure incurred and about to be incurred in completing the same and the Local Government Board for Ireland after due inquiry has satisfied itself that in the interests of the public health it is necessary that the said sewerage scheme should be forthwith completed and that further borrowing powers be conferred on the said rural district council:

And whereas it is expedient that such further borrowing powers should subject to the consent of the Local Government Board be conferred upon the said rural district council:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Orders in
schedules
confirmed.

1. The Orders set out in the schedules hereto are hereby confirmed and all the provisions thereof shall have full validity and force.

As to
borrowing
powers of
Bally-
shannon
Rural
District
Council.

2. Notwithstanding the provisions of the Public Health (Ireland) Act 1878 the Ballyshannon Rural District Council may subject to the consent of the Local Government Board borrow under the Public Health (Ireland) Act 1878 in respect of the said area of chargeability for the said sewerage scheme the said sum of two thousand pounds over and above such sum as it shall now be entitled to borrow having regard to its existing area of chargeability.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 2) Act 1911.

SCHEDULES.

A.D. 1911.

SCHEDULE A.

KING'S COUNTY.

*Provisional Order to transfer the business of the Trustees
for the Derryholmes Drainage District to the
County Council of the King's County.*

*King's
County.*

WHEREAS the Trustees for the Derryholmes Drainage District were appointed under the Drainage (Ireland) Act 1842 and the said district is situate wholly within the King's County: 5 & 6 Vict.
c. 89.

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an order transferring to the county council of the King's County the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the trustees for the said district:

And whereas the said trustees have consented to the making of this Order:

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:-- 61 & 62 Vict.
c. 37.

1. There shall be transferred to the county council of the King's County the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the trustees for the Derryholmes Drainage District.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Derryholmes Drainage Order 1910.

Given under our seal of office this fourth day of October in the year of our Lord one thousand nine hundred and ten.

(L.S.) (Signed) H. A. ROBINSON.

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SCHEDULE B.

COUNTY OF KILDARE.

*Kildare. Provisional Order to transfer the business of the Drainage
Board for the Rathangan River Drainage District
to the County Council of Kildare.*

39 & 40 Vict.
c. viii. WHEREAS the Rathangan River Drainage District was constituted by
a Provisional Order of the Commissioners of Public Works in Ireland
dated the nineteenth day of June one thousand eight hundred and
seventy-five and confirmed by the Drainage and Improvement of Lands
Supplemental Act (Ireland) 1876 No. 2 and the said district is
wholly situated within the county of Kildare:

And whereas it appears proper to Us the Local Government
Board for Ireland (in this Order referred to as "the Local Government
Board") to make an order transferring to the county council of
Kildare the business arising in their county under the Drainage and
Improvement of Lands (Ireland) Acts 1863 to 1892 of the drainage
board for the said district:

And whereas the drainage board have consented to the making
of this Order:

61 & 62 Vict.
c. 37. Now therefore We the Local Government Board in pursuance of
the powers given to Us by section 20 of the Local Government
(Ireland) Act 1898 and of all other powers enabling Us in that behalf
do hereby order that from and after the date of the Act confirming
this Order the following provisions shall have effect:—

1. There shall be transferred to the county council of Kildare
the business arising in their county under the Drainage and Improve-
ment of Lands (Ireland) Acts 1863 to 1892 of the drainage board
for the Rathangan River Drainage District.

2. The costs and expenses of the Local Government Board incurred
in respect of the application for preparation making and confirmation
of this Order shall be paid by the county council and may be raised
equally over the whole county.

3. This Order may be cited as the Rathangan River Drainage
Order 1911.

Given under our seal of office this tenth day of April in the
year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

SCHEDULE C.

A.D. 1911.

RURAL DISTRICT OF BALLYSHANNON.

*Provisional Order to enable the Council of the Rural District
of Ballyshannon to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

*Bally-
shannon.*

WHEREAS the council of the rural district of Ballyshannon (in this Order referred to as "the district council") require to purchase and take the lands described in the schedule hereto for the purpose of improving the sewerage of the town of Bundoran in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Donegal in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

3. This Order may be cited as the Bundoran Sewerage Order 1911.

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A.D. 1911.

Bally-
shannon.

SCHEDULE.

RURAL DISTRICT OF BALLYSHANNON.

COUNTY OF DONEGAL.

Refer- ence to deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
TOWNLAND OF DEUMACRIN—PARISH OF INISHMACSAINT.				
2.	Rough pasturage containing 2r. 3p.	The Provost Fellows and Scholars of Trinity College Dublin.	Rebecca Hamilton Hazlett C. W. H. G. Hamilton Annie Maude M. Reid Florence Kathleen Hamil- ton Richard A. Hamilton Robert Garland.	Rebecca Hamilton Hazlett C. W. H. G. Hamilton Annie Maud M. Reid Florence Kathleen Hamilton Richard A. Hamilton Robert Garland.

Given under our seal of office this tenth day of April in the year
of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed)

H. A. ROBINSON.

SCHEDULE D.

RURAL DISTRICT OF LOUGHREA.

Loughrea.

*Provisional Order to enable the Council of the Rural District
of Loughrea to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Loughrea (in this
Order referred to as "the district council") require to purchase and
take the lands water and rights described in the schedule hereto for
the purpose of providing a supply of water for the town of Athenry
in their district:

Now therefore We the Local Government Board for Ireland in
pursuance of the powers given to Us by section 203 of the Public
Health (Ireland) Act 1878 and of all other powers enabling Us in
that behalf do hereby order that from and after the date of the
Act confirming this Order the following provisions shall have effect
namely:—

1. The district council shall be empowered to put in force with
reference to the lands water and rights described in the schedule hereto
and for the purpose aforesaid the powers of the Lands Clauses Acts

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as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. A.D. 1911.
Loughrea.
 59 & 60 Vict.
 c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Galway in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council. 61 & 62 Vict.
 c. 37.

4. This Order may be cited as the Athenry Waterworks Order 1911.

SCHEDULE.

COUNTY OF GALWAY.

RURAL DISTRICT OF LOUGHREA.

PARISH OF ATHENRY.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
TOWNLAND OF BAUNMORE.			
1	Land bed and soil of stream containing 1r. 6p. and right to take water therefrom.	Martin King Irish Land Commission.	Martin King.
2	Land bed and soil of stream containing 2r. 16p. and right to take water therefrom.	John Madden Irish Land Commission.	John Madden.
3	Land bed and soil of stream containing 1a. 1r. 27p.	John Monaghan Irish Land Commission.	John Monaghan.
TOWNLAND OF KNOCKAUNGLASS.			
4	Land containing 12p. - -	Margaret Whelan Irish Land Commission.	Margaret Whelan.
TOWNLAND OF CULLAIRBAUN.			
5	Land containing 16p. - -	Christopher Kennedy Irish Land Commission.	Christopher Kennedy.

Given under our seal of office this eleventh day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

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A.D. 1911.

SCHEDULE E.

RURAL DISTRICT OF TRALEE.

*Tralee. Provisional Order to enable the Council of the Rural District
of Tralee to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

WHEREAS the council of the rural district of Tralee (in this Order referred to as "the district council") being the burial board of the district require to purchase and take the lands described in the schedule hereto for the purpose of enlarging the burial ground at Glebe (Churchill) in their district:

41 & 42 Vict.
c. 52. Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

59 & 60 Vict.
c. 54. 1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

61 & 62 Vict.
c. 37. 2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Kerry in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

3. This Order may be cited as the Glebe (Churchill) Burial Ground Order 1911.

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SCHEDULE.

A.D. 1911.

Tralee.

COUNTY OF KERRY.

RURAL DISTRICT OF TRALEE.

TOWNLAND OF GLEBE (CHURCHILL)—PARISH OF BALLYNAHAGLISH.

Refer- ence to deposited Plan.	Description of Land.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupier.
1	Field contain- ing 2r. 35p.	The Reverend Daniel Falvey O.P. the Reve- rend Stephen Kelly O.P. the Reverend John Lyons O.P.	The Reverend Daniel Falvey O.P. the Reve- rend Stephen Kelly O.P. the Reverend John Lyons O.P.	The Reverend J. D. McCarthy O.P.

Given under our seal of office this fourth day of April in the year
of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) H. A. ROBINSON.

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